or

(x) for any other purposes as the Minister thinks fit; or

(c) the information contained in the personal data has been made public as a result of steps deliberately taken by the data subject.

(2) The Minister may by order published in the Gazette exclude the application of subparagraph (1)(b)(i), (viii) or (ix) in such cases as may be specified in the order, or provide that, in such cases as may be specified in the order, the condition in subparagraph (1)(b)(i), (viii) or (ix) is not to be regarded as satisfied unless such further conditions as may be specified in the order are also satisfied.

(3) A person who contravenes subsection (1) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

(4) For the purposes of this section—

"medical purposes" includes the purposes of preventive medicine, medical diagnosis, medical research, rehabilitation and the provision of care and treatment and the management of healthcare services;

"healthcare services" has the meaning assigned to it in the Private Healthcare Facilities and Services Act 1998 [Act 586];

"healthcare professional" means a medical practitioner, dental practitioner, pharmacist, clinical psychologist, nurse, midwife, medical assistant, physiotherapist, occupational therapist and other allied healthcare professionals and any other person involved in the giving of medical, health, dental, pharmaceutical and any other healthcare services under the jurisdiction of the Ministry of Health.

Section 41. Repeated collection of personal data in same circumstances

(1) Where a data user—

(a) has complied with the provisions of the Notice and Choice Principle under section 7 in respect of the collection of personal data from the data subject, referred to as the "first collection"; and

(b) on any subsequent occasion again collects personal data from that data subject, referred to as the "subsequent collection",

the data user is not required to comply with the provisions of the Notice and Choice Principle in respect of the subsequent collection if—

(A) to comply with those provisions in respect of that subsequent collection would be to repeat, in the same circumstances, what was done to comply with that principle in respect of the first collection; and

(B) not more than twelve months have elapsed between the first collection and the subsequent collection.

(2) For the avoidance of doubt, it is declared that subsection (1) shall not operate to prevent a subsequent collection from becoming a first collection if the data user concerned has complied with the provisions of the Notice and Choice Principle in respect of the subsequent collection.

Section 42. Right to prevent processing likely to cause damage or distress

(1) Subject to subsection (2), a data subject may, at any time by notice in writing to a data user, referred to as the "data subject notice", require the data user at the end of such period as is reasonable in the circumstances, to—

(a) cease the processing of or processing for a specified purpose or in a specified manner; or

(b) not begin the processing of or processing for a specified purpose or in a specified manner,

any personal data in respect of which he is the data subject if, based on reasons to be stated by him—

(A) the processing of that personal data or the processing of personal data for that purpose or in that manner is causing or is likely to cause substantial damage or substantial distress to him or to another person; and

(B) the damage or distress is or would be unwarranted.

(2) Subsection (1) shall not apply where—

(a) the data subject has given his consent;

(b) the processing of personal data is necessary—

(i) for the performance of a contract to which the data subject is a party;

(ii) for the taking of steps at the request of the data subject with a view to entering a contract;

(iii) for compliance with any legal obligation to which the data user is the subject, other than an obligation imposed by contract; or

(iv) in order to protect the vital interests of the data subject; or

(c) in such other cases as may be prescribed by the Minister by order published in the Gazette.

(3) The data user shall, within twenty-one days from the date of receipt of the data subject notice under subsection (1), give the data subject a written notice—

(a) stating that he has complied or intends to comply with the data subject notice; or

(b) stating his reasons for regarding the data subject notice as unjustified, or to any extent unjustified, and the extent, if any, to which he has complied or intends to comply with it.

(4) Where the data subject is dissatisfied with the failure of the data user to comply with the data subject notice, whether in whole or in part, under paragraph (3)(b), the data subject may submit an application to the Commissioner to require the data user to comply with the data subject notice.

(5) Where the Commissioner is satisfied that the application of the data subject under subsection (4) is justified or justified to any extent, the Commissioner may require the data user to take such steps for complying with the data subject notice.

(6) A data user who fails to comply with the requirement of the Commissioner under subsection (5) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

Section 43. Right to prevent processing for purposes of direct marketing

(1) A data subject may, at any time by notice in writing to a data user, require the data user at the end of such period as is reasonable in the circumstances to cease or not to begin processing his personal data for purposes of direct marketing.

(2) Where the data subject is dissatisfied with the failure of the data user to comply with the notice, whether in whole or in part, under subsection (1), the data subject may submit an application to the Commissioner to require the data user to comply with the notice.

(3) Where the Commissioner is satisfied that the application of the data subject under subsection (2) is justified or justified to any extent, the Commissioner may require the data user to take such steps for complying with the notice.

(4) A data user who fails to comply with the requirement of the Commissioner under subsection (3) commits an offence and shall, on conviction, be liable to a fine not exceeding two hundred thousand ringgit or to imprisonment for a term not exceeding two years or to both.

(5) For the purposes of this section, "direct marketing" means the communication by whatever means of any advertising or marketing material which is directed to particular individuals.

Section 44. Record to be kept by data user

(1) A data user shall keep and maintain a record of any application, notice, request or any other information relating to personal data that has been or is being processed by him.

(2) The Commissioner may determine the manner and form in which the record is to be maintained.

PART III – EXEMPTION

Section 45. Exemption

(1) There shall be exempted from the provisions of this Act personal data processed by an individual only for the purposes of that individual's personal, family or household affairs, including recreational purposes.

(2) Subject to section 46, personal data—

(a) processed for—

(i) the prevention or detection of crime or for the purpose of investigations;

(ii) the apprehension or prosecution of offenders; or

(iii) the assessment or collection of any tax or duty or any other imposition of a similar nature,

shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act;

(b) processed in relation to information of the physical or mental health of a data subject shall be exempted from the Access Principle and other related provisions of this Act of which the application of the provisions to the data subject would be likely to cause serious harm to the physical or mental health of the data subject or any other individual;

(c) processed for preparing statistics or carrying out research shall be exempted from the

General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act, provided that such personal data is not processed for any other purpose and that the resulting statistics or the results of the research are not made available in a form which identifies the data subject;

(d) that is necessary for the purpose of or in connection with any order or judgement of a court shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act;

(e) processed for the purpose of discharging regulatory functions shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle and Access Principle and other related provisions of this Act if the application of those provisions to the personal data would be likely to prejudice the proper discharge of those functions; or

(f) processed only for journalistic, literary or artistic purposes shall be exempted from the General Principle, Notice and Choice Principle, Disclosure Principle, Retention Principle, Data Integrity Principle and Access Principle and other related provisions of this Act, provided that—

(i) the processing is undertaken with a view to the publication by any person of the journalistic, literary or artistic material;

(ii) the data user reasonably believes that, taking into account the special importance of public interest in freedom of expression, the publication would be in the public interest; and

(iii) the data user reasonably believes that in all the circumstances, compliance with the provision in respect of which the exemption is claimed is incompatible with the journalistic, literary or artistic purposes.

Section 46. Power to make further exemptions

(1) The Minister may, upon the recommendation of the Commissioner, by order published in the Gazette exempt—

(a) the application of any of the Personal Data Protection Principles under this Act to any data user or class of data users; or

(b) any data user or class of data users from all or any of the provisions of this Act.

(2) The Minister may impose any terms or conditions as he thinks fit in respect of any exemption made under subsection (1).

(3) The Minister may at any time, on the recommendation of the Commissioner, by order published in the Gazette, revoke any order made under subsection (1).

PART IV - APPOINTMENT, FUNCTIONS AND POWERS OF COMMISSIONER

Section 47. Appointment of Commissioner

(1) The Minister shall appoint any person as the “Personal Data Protection Commissioner” for the purposes of carrying out the functions and powers assigned to the Commissioner under this Act on such terms and conditions as he thinks desirable.

(2) The appointment of the Commissioner shall be published in the Gazette.

(3) The Commissioner appointed under subsection (1) shall be a body corporate having perpetual succession and a common seal.

(4) The Commissioner may sue and be sued in his corporate name.

Section 48. Functions of Commissioner

The Commissioner shall have the following functions:

(a) to advise the Minister on the national policy for personal data protection and all other related matters;

(b) to implement and enforce the personal data protection laws, including the formulation of operational policies and procedures;

(c) to promote and encourage associations or bodies representing data users to prepare codes of practice and to disseminate to their members the codes of practice for the purposes of this Act;

(d) to cooperate with bodies corporate or government agencies for the purpose of performing his functions;

(e) to determine in pursuance of section 129 whether any place outside Malaysia has in place a system for the protection of personal data that is substantially similar to that as provided for under this Act or that serves the same purposes as this Act;

(f) to undertake or cause to be undertaken research into and monitor developments in the processing of personal data, including technology, in order to take account any effects such developments may have on the privacy of individuals in relation to their personal data;

(g) to monitor and supervise compliance with the provisions of this Act, including the issuance of circulars, enforcement notices or any other instruments to any person;

(h) to promote awareness and dissemination of information to the public about the operation of this Act;

(i) to liaise and cooperate with persons performing similar personal data protection functions in any place outside Malaysia in respect of matters of mutual interest, including matters concerning the privacy of individuals in relation to their personal data;

(j) to represent Malaysia through participation in events that relate to personal data protection as authorized by the Minister, whether within or outside Malaysia; and

(k) to carry out such activities and do such things as are necessary, advantageous and proper for the administration of this Act, or such other purposes consistent with this Act as may be directed by the Minister.

Section 49. Powers of Commissioner

(1) The Commissioner shall have all such powers to do all things necessary or expedient for or in connection with the performance of his functions under this Act.

(2) Without prejudice to the generality of subsection (1), the powers of the Commissioner shall include the power—

(a) to collect such fees as may be prescribed by the Minister;

(b) to appoint such agents, experts, consultants or any other persons as he thinks fit to assist him in the performance of his functions;

(c) to formulate human resource development and cooperation programmes for the proper and effective performance of his functions;

(d) to enter into contracts;

(e) to acquire, purchase, take, hold and enjoy any movable or immovable property of every description for the performance of his functions, and to convey, assign, surrender, yield up, charge, mortgage, demise, transfer or otherwise dispose of, or deal with such property or any interest therein vested in him;

(f) to perform such other functions as the Minister may assign from time to time; and

(g) to do all such things as may be incidental to or consequential upon the performance of his functions.

Section 50. Appointment of Deputy Commissioners and Assistant Commissioners

(1) The Commissioner may, with the approval of the Minister, from time to time, appoint such number of public officers as Deputy Commissioners and such number of persons as Assistant Commissioners as are necessary to assist the Commissioner in the performance of his functions and the exercise of his powers under this Act.

(2) The Deputy Commissioners and Assistant Commissioners appointed under subsection (1) shall hold office for such periods, receive such remuneration, allowances or benefits, and shall be subject to such terms and conditions of service as the Commissioner, with the approval of the Minister, may determine.

(3) The Deputy Commissioners and Assistant Commissioners appointed under subsection (1) shall be subject to the supervision, direction and control of the Commissioner.

Section 51. Appointment of other officers and servants

The Commissioner may employ on such terms and conditions as he thinks desirable such officers and servants as may be necessary to assist him in the performance of his functions and the exercise of his powers under this Act.

Section 52. Loans and advances to officers and servants

The Commissioner may grant loans and advances to the officers and servants under section 51 for such purposes and on such terms and conditions as the Commissioner may determine.

Section 53. Tenure of office

Subject to such conditions as may be specified in his instrument of appointment, the Commissioner shall, unless he sooner resigns or vacates his office or his appointment is sooner revoked, hold office for a term not exceeding three years and may be eligible for reappointment.

Section 54. Revocation of appointment and resignation

(1) The Minister may at any time revoke the appointment of the Commissioner and shall state the reason for such revocation.

(2) The Commissioner may at any time resign his office by giving a written notice addressed to the Minister fourteen days prior to the intended date of resignation.

Section 55. Temporary exercise of functions and powers of Commissioner

(1) The Minister may temporarily appoint a Deputy Commissioner to perform the functions and powers of the Commissioner for the period when—

(a) the Commissioner is by reason of illness, leave of absence or any other cause unable to perform his functions for any substantial period; or

(b) the office of the Commissioner is vacant.

(2) A person appointed under subsection (1) shall, during the period in which he is performing the functions and exercising the powers of the Commissioner under this section, be deemed to be the Commissioner.

Section 56. Vacation of office

The office of the Commissioner shall be vacated—

(a) if he dies;

(b) if there has been proved against him, or he has been convicted of, a charge in respect of—

(i) an offence involving fraud, dishonesty or moral turpitude;

(ii) an offence under any law relating to corruption; or

(iii) any other offence punishable with imprisonment (in itself only or in addition to or in lieu of a fine) for more than two years;

(c) if his conduct, whether in connection with his duties as a Commissioner or otherwise, has been such as to bring discredit on the office of the Commissioner;

(d) if he becomes bankrupt;

(e) if he is of unsound mind or is otherwise incapable of discharging his duties;

(f) if his appointment is revoked by the Minister; or

(g) if his resignation is accepted by the Minister.

Section 57. Remuneration and allowances

The Commissioner shall be paid such remuneration and allowances as the Minister may determine after consultation with the Minister of Finance.

Section 58. Delegation of Commissioner's functions and powers

(1) The Commissioner may, subject to such conditions, limitations or restrictions as he may think fit to impose, delegate any of his functions or powers imposed or conferred upon him under this Act, except his power of delegation, to the Deputy Commissioners or Assistant Commissioners, and any function or power so delegated may be performed and exercised by the officer in the name and on behalf of the Commissioner.

(2) The delegation under subsection (1) shall not preclude the Commissioner himself from performing or exercising at any time the delegated functions or powers.

Section 59. Direction by Minister

(1) The Commissioner shall be responsible to the Minister.

(2) The Minister may give to the Commissioner directions of a general character consistent with

the provisions of this Act relating to the performance of the functions and powers of the Commissioner and the Commissioner shall give effect to such directions.

Section 60. Returns, reports, accounts and information

(1) The Commissioner shall furnish to the Minister and any such public authority as may be directed by the Minister, the returns, reports, accounts and information with respect to his activities as the Minister may require or direct.

(2) Without prejudice to the generality of subsection (1), the Commissioner shall, as soon as practicable after the end of each financial year, cause to be made and transmitted to the Minister and if so directed by the Minister to any other public authority, a report dealing with the activities of the Commissioner during the preceding financial year, and the report shall be in such form and shall contain such information relating to the proceedings and policies of the Commissioner as the Minister may specify.

PART V - PERSONAL DATA PROTECTION FUND

Section 61. Establishment of Fund

(1) For the purposes of this Act, a fund to be known as the “Personal Data Protection Fund” is established.

(2) The Fund shall be controlled, maintained and operated by the Commissioner.

(3) The Fund shall consist of—

(a) such sums as may be provided by Parliament for the purposes of this Act from time to time;

(b) fees, costs and any other charges imposed by or payable to the Commissioner under this Act;

(c) all monies derived from the sale, disposal, lease, hire or any other dealings with the movable or immovable property vested in or acquired by the Commissioner;

(d) all monies as may be paid to the Commissioner from time to time for loans given by the Commissioner; and

(e) all other monies or property which may in any manner become payable to or vested in the Commissioner in respect of any matter incidental to his functions and powers.

Section 62. Expenditure to be charged on Fund

The Fund may be expended for the following purposes:

(a) paying any expenditure lawfully incurred by the Commissioner;